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CASTE AND IDENTITY IN COLONIAL MEXICO: A PROPOSAL AND AN EXAMPLE

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For years historians have struggled with the ambiguous and unstable meanings of racial labels in colonial Mexico in thinking about the degree to which they reflected or determined social place in that stratified society. The difficulty, at least in part, stems from their complex derivation as composite judgments. They are not, therefore, *only* about race. Given appraisals might draw on legal (tributary v. non-tributary status, in effect a commoner-noble distinction based on who was liable for a head tax), cultural (Hispanic v. Indian which in other terms was a conqueror-conquered, Christian-pagan, civilized-barbarian distinction[1]), economic (kind of work, wealth, or property), and physical or 'racial' criteria as people were graded, or, more importantly for my purposes, as they graded themselves and each other.[2] Terms such as *español*, *mestizo*, *mulato*, *Indio* therefore placed people but, as a kind of shorthand summary of combinations of qualities that could be applied or claimed. As Robert McCaa has usefully stressed, racial terminology reflected one's *calidad*, an "inclusive impression reflecting one's reputation as a whole."[3] But *how* and by whom given impressions were formed, with what *mix* of qualities, and whether in complements or as trade-offs remains something of a mystery.

Because this process has not been understood, many scholars have taken the racial terminology more or less at face value and reduced them to a 'system'. This has meant concentrating on main types rather than puzzling over nuance, variation, and apparent contradiction in labeling. Partly this reflects the sources most commonly used to study stratification: census listings and parish registers. Using the former, for example, Patricia Seed speaks of "the five *basic* [my emphasis] terms in use in colonial Mexico by the middle of the

eighteenth century. . .[:] Spanish, Black, Indian, mestizo, and mulatto."[4]

In fact Seed and many others seem to follow Gonzalo Aguirre Beltrán's early reductionism which grouped racial designations into the three unmixed ones of European, African, and Indian, and the three dominant cultural and phenotypic combinations of Euro-, Afro-, and Indo-mestizo. Yet Afro- and Indo-mestizos, Aguirre adds, were also "united (*unidos*) by a common culture under the term 'castas'."[5] In regrouping some racial designations under the broader term *casta*, let us note, Aguirre merges a category of descent, supposedly a biological identity, with that of class, ostensibly a functional one pointing to wage laboring meniality (*obreros*). Moreover this caste-like ascription of subordination, permanently excluding *castas* from white status, also permanently fixed them as menials.

Euro-mestizos, by contrast, would have been less confined by their ascribed *calidad*. In descent, they plausibly could represent themselves as more, rather than less, 'European'; in work, they might use respectable if somewhat modest positions as artisans or shopkeepers to gain wealth and prestige; and in access to patronage, they, more likely than castas, had family and social ties to persons of wealth and influence.[6] Many, but surely not all of them, therefore avoided falling into Aguirre's "common culture" of castas, one based not on the common ground of language, ethnic tradition, or organizing belief, but imposed through phenotype, apartheid, and proletarianization. Excluded from white society, a range of Afro-mestizos were thus slotted permanently as an underclass. And perhaps over time, especially as viewed by non-*castas*, *casta* racial terms could stand generically for menials, just as certain work designations could stand for *'casta'*. Like Aguirre, Sherburne F. Cook and Woodrow Borah reduced a complex reality to manageable proportions by grouping people under labels of Indian, white, mestizo, and black "as

if" the four groups, they warned, "were clear biological entities" instead of "intergrading types."[7] Their skepticism as to the content of racial labels seems to allow that culture might determine 'race', while Aguirre, as we have seen, inclines to the view that race determined culture.[8]

Cook and Borah took racial categories as approximations but to work with them they reified what they knew to be variable and unstable.[9] But their success in setting out demographic profiles of colonial populations tends to obscure how terminology may have been used by people in the search for advantage.[10] Their work is therefore of limited use for my purpose: to view status and identity as a construct that might shift with audience and situation.

As a complement to their work, therefore, I propose that identity in colonial Latin America be viewed as more fluid than caste terminology, taken at face value, would imply. Some sense of the complex and pluralistic process of assigning status and position can be had by thinking of it as a discursive field with no absolute boundaries setting one and another *calidad* but approximate ones. A racial term, from this perspective, should always be viewed as not merely about race but, as we have noted, as drawing from a larger field of cultural, material, associational, and moral criteria. And these came together differently depending on the social and personal place of observers. Designations were therefore not descriptive, but political, weighed up reputation differently to prejudice or enhance a given identity.

Here a parenthesis. The process I have described (somewhat hypothetically so far) interests me mainly as it might prove to be applicable to the plebeian population. Status shifts within this group moved only within a narrow range. In this, the objective condition of the lower orders as a mostly dominated, disadvantaged, and exploited population, fits the picture of them drawn by the traditional historiography as systemic in the political economy of the colony.

I take it as a given, for example, that few plebeians of mixed ancestry entered the white strata of society. But that is not the point, for we know that plebeians routinely viewed certain words as slights, insults, and put downs and contested them (sometimes with surprising intensity). Examining such exchanges closely can tell us a good deal about how multi-ethnic populations with strong attachments to place, group, patron saint, or lineage, mixed with and distinguished themselves from others with like attachments. It can also tell us something of political economy in a structural sense, in particular the degree to which dominated peoples accepted or subverted attempts to define and control them.

How can we gain this insider look at plebeian identities? I should like to propose that the plebeian exchanges we have been talking about be treated as speech acts. This shifts the emphasis: instead of label extraction from parish records and census schedules it requires that labels be noted *in terms of* situations, the *political* process of giving, modifying, contesting, shading, and acquiescing in one or another label. This can be done with criminal cases, for example, where one can sometimes find testimony about the words that led to blows and, at times, to homicide. Exactly what words, how they were spoken, who said them, who stood by as onlookers, and during what kinds of occasions should claim our closest attention. Yet however vivid this kind of material, it normally is limited to a single incident. Moreover because homicide and assault were so often accompanied by excessive consumption of alcohol, precise records tend to pay more attention to the impaired condition of participants than to recording precisely what happened.

A more mundane source that follows a subject over time from several viewpoints can also provide us with glimpses of identity. I should like to illustrate how-and this is the example

of my title-from a short and incomplete bigamy file (incomplete because the accused escaped jail and never went to formal trial in Mexico City) of 55 folio pages. It will help us chart some variation and complexity in the 'identity' of Gabriel Pérez.

In reading the file I have controlled for time and place (the broad situational context) and have noted by speaker various characterizations of Gabriel in racial-physical and cultural terms. As the notion of *calidad* would predict, these categories should be seen as interactive rather than discrete. Keeping them separate is therefore somewhat artificial but perhaps helpful both for reassembling them later and for keeping track of variation.

Gabriel's file includes only brief references to his early life and then, in more detail, to his two marriages.[11] It is lop-sided, therefore, basically giving us two documentary moments ten years apart (circa 1720 and circa 1731) around which clusters the testimony.

Born about 1690, he was one of at least three legitimate sons of Angela (also known as Angelina) Ortiz and Ramón Cortés of barrio Analco in Puebla.[12] The file tells us nothing more about Gabriel's parents, no explicit racial designations and no indication of their occupations. From descriptions of Gabriel, however, we would probably be right to infer that they were Afro-mestizos, *castas* of humble standing, who nevertheless enjoyed civil standing as free citizens and who had taken the trouble to be married 'legally', that is, under the auspices of the church.[13] As did many plebeians, Gabriel used the surname of neither his father nor his mother; instead he called himself Pérez, a name he probably took from a master, patron, or godfather.[14]

A more detailed view of Gabriel comes from those who spoke of him in connection with the two places where he settled and married. He went to the first of these, the valley of Atrisco, directly from Puebla, it seems, in about 1714. There he found work at hacienda Portesuelo and

in 1720 married. He went to the second, the district of Apán, after running away from Portesuelo and the debt he owed his *dueño*, don Manuel de Torija. Gabriel took work in an hacienda, as we shall see, but then lost his wife when she ran away with his brother. He then married a second time. In both cases Gabriel married an Indian woman. The witnesses to his marriages provide us with glimpses of Gabriel at about age 30 and then again at 40.

First the testimony that surrounds Gabriel's life and marriage in Atrisco. It consists of seven statements, the first the entry in the parish register made by don Joseph Muño, *teniente* of the *cura*. Although only a brief description, it stands as the only strictly contemporaneous record; the next six depositions date from 1731, thus recording what people remembered about Gabriel eleven years earlier. The following, with the notary's descriptions, spoke of Gabriel: (1) don Domingo Martínez, 38, Spaniard, merchant and granary keeper (*trojero*), formerly of the hacienda Portesuelo (an administrator?); (2) Manuel Benítez, 40, mulatto, former majordomo of Portesuelo; (3) don Juan de la Rosa, 60, Spaniard, *labrador*, former administrator of hacienda Portesuelo; (4) Diego Benítez, 33, mulatto, muleteer; (5) Bartolomé Juárez, 46, *indio, ladino en la lengua Castillana*, stonemason; (6) Antonia Sebastiana, 30, wife of Bartolomé, *india ladina*.

Our witnesses, therefore, consist of six men and one woman. Three of the men are characterized as Spaniard, claim the honorific don, and would have expected Gabriel's deference; two of the men, both mulatto, both with the surname Benítez,[15] approximated Gabriel's status except that one of them held the position of *mayordomo* on the *hacienda*. Acting as a kind of foreman supervising and managing other workers therefore gave him the edge over Gabriel in the context of the *hacienda*. The sixth man, together with his wife, refer to themselves as *indios*, albeit *ladinos* and thus culturally at home in the hispanic world; they acted as *padrinos* to the

marriage. In rough terms, then, Gabriel's cohorts consist of three men superior to him, one, the *mayordomo*, slightly above him, and three roughly at his own level. Those who might have contested precedence would have come from the likes of these five plebeian cohorts, but I see no reason, given Gabriel's marriage to the Indian girl Antonia (and other evidence to be discussed below) to assume automatically that he stood, or thought he stood, above the Indians.[16]

How did these people describe Gabriel? In the depositions, looking for the components of *calidad*, we see a sequence of caste assignment, followed by notations about Gabriel's body, hair, coloration, and demeanor. The latter, perhaps, should be viewed as glosses modifying or justifying the categorization. Six of the seven used the term mulatto to place Gabriel: two in unmodified form, two in combination with *zambaigo* to indicate an Afro-Indian descent (*"mulato zambaigo*", according to don Juan de la Rosa, former administrator; "*mulato o zambaigo*" according to Diego Benítez, mulatto muleteer and most likely Gabriel's closest workmate among the witnesses). The two Indian witnesses, Bartolomé and his wife Antonia, also refer to Gabriel as a mulatto but signify a hybrid Afro-Indian identity in calling Gabriel a *calpan mulato*. The term is interesting because it associates Gabriel with the Indian town Calpan in combination with a generic *casta* designation completely associated with the hispanic world. The final term, that used by the priest in the register, terms Gabriel simply *zambaigo*.

Thus, however delimited the continuum, the designations of Gabriel range from zambaigo at one pole to mulatto at the other. Let's look again at the assigning of these terms. It is of some interest that don Domingo, the Spanish merchant, placed Gabriel as mulatto in response to a question worded to give him a choice: "does he know Gabriel Pérez, mulatto or *zambaigo* of the said *hacienda* de Portesuelo"? His answer represents some conviction, for he

makes a clear choice: mulatto and *not zambaigo*. On the other hand, the other judgement of Gabriel as mulatto (by Manuel Benítez, the mulatto *mayordomo*), comes in response to a question that has dropped the term *zambaigo* ("does he know Gabriel Pérez, mulatto of the said *hacienda*"?). In that his judgment simply repeats the category assigned Gabriel in the *comisario's* question, it is less clear than don Domingo's testimony as to degree of conviction in the characterization.

The other pole of our continuum, *zambaigo* without qualification, comes, I have noted, from the priest (either as his own judgment or as an identity proposed by the celebrants or their patrons). After all marriage would have been an appropriate moment to minimize difference in caste between contracting parties, and the designation *zambaigo* accomplishes this by drawing Gabriel closer to the category Indian. *Zambaigo* also seems a better fit for a man who had become a *gañán*, a term almost exclusively used to denote "resident Indian worker" on a rural property.[17]

Let me push the point a bit further and suggest, somewhat speculatively, that the *gañán-zambaigo* pairing represents an identity adjustment probably engineered by don Manuel de Torija, *dueño* of the *hacienda*. It adjusted Gabriel's phenotypic label to conform more closely to his status as an "Indian" resident worker; it brought him closer to the Indian status of his bride who as servant-cum-adopted-daughter raised as an orphan or foundling was also a *gañana*. This version of what happened might explain why the priest identified Gabriel in the register as "*natural y gañán*" of don Manuel's hacienda Portesuelo when it was not true.[18] In fact we know that he was native to Puebla from Gabriel's testimony, from his niece's deposition, from the instrumental witnesses for his second marriage, and perhaps most importantly, from mention of

his arrival in Atrisco as a *forastero*.[19]

The act of marrying, a social moment mediated in this case by priest and master, imposed a kind of symmetry of "identity" on the couple: both stood as *gañánes* on and native to estates owned by a single *dueño*. And because I have assumed this a purposeful falsification[20] collaborated in by the priest, we might wonder to what purpose? One explanation would link the micro-event of a marriage between rustics to severe labor shortages in the region. At this time in the adjacent district of Tlaxcala, for example, we know that *hacendados* did whatever they could to attach workers to their estates, virtually as chattle, according to James Riley, through the "institution of *gañanía*."[21] It is likely, therefore, that don Manuel made a deal: he would permit the likable muleteer from Puebla to marry the attractive and youthful servant Antonia; in return, Gabriel, portrayed as a *gañán* native to his estates, accepted a status which legally, if not effectively, attached him to the hacienda as a worker.[22]

In becoming a *gañán* Gabriel therefore became less mulatto and more Indian and so enters the parish register with his mulatto designation muted to *zambaigo*. Moreover, as if to emphasize further that Gabriel's identity had been adjusted in this way, the priest recorded the marriage in the register reserved for *indios* rather than the one for "*mulatos, chinos, negros, y mestizos*."[23]

Perhaps the most interesting comment on Gabriel's hybrid identity, however, comes from his Indian *padrinos*. In Bartolomé Juárez's words, he was (as we have already noted) a *"mulato o Calpan mulato como dicen los indios*."[24] What did Bartolomé mean by this? I think the point was to join two contradictory indicators as a way to underscore the disjunction between Gabriel's evident identity and his constructed one. Another description supports this view. Caytano

Miguel (*indio* who spoke in Nahuatl, *soltero, natural de pueblo de Tepeapulco*) who had known Gabriel in the Apán district, noted that "*aunque es mulato, tiene balcarrotas como indio y las pasas como de negro, que mas lo parece que mulato.*"[25] Caytano's description points to the same disjunction in a juxtaposition of aspects of Gabriel's appearance: locks of hair falling over the sides of his face (the Indian) yet possessing the kinky hair of a black. Moreover he dramatizes it further in his explicitly choosing an Indian-Black pairing in preference to an Indian-mulatto one. It is plausible to think, therefore, that with *calpan mulato* the Indians coined a special term to register, possibly with some amusement, Gabriel's identity as an artificial combination of black and Indian, of muleteer and *gañán*.[26] The term, let us note (from Bartolomé Juárez's phrase *como dicen los indios*), was not merely a private joke but apparently had currency only among Indians as a group. It therefore represents a kind of collective comment by one ethnic group on Gabriel.

Caytano Miguel's gloss on Gabriel's hybrid identity came, as I have noted, from his knowledge of him circa 1730 rather than 1720, as did the others we have discussed so far. It shows some continuity in Gabriel's appearance but without presuming that this represented an indistinct Indian-mulatto entity. In fact Caytano had no doubt that Gabriel was a mulatto and pairs his appearance and his *calidad* as disconnected: "although mulato," he says, Gabriel has *balcarotas* like the Indians. . .[emphasis added]."

This judgment of Gabriel's *calidad* is one of five that we have for Gabriel at the time of his second marriage in Apán in 1731. The others are as follows: (1) fray Joan de Villaseñor, *predicador* and *ministro coadjutor* in Apán who married Gabriel and María; (2) Francisco Antonio Villanueva, a Spaniard, age 39, who (3) with his wife Nicolása María Gutiérrez (also

Spaniard, age 35), were shepherds, "*vecinos* for two years," Francisco said, on hacienda San Gerónimo; (4) Jacinto García, age 22, *castizo*, vaquero on *hacienda Coatlaco*, and *padrino* of Gabriel's second marriage. The fifth, Caytano Miguel, whom we already mentioned, was an Indian who testified in Nahuatl, unmarried, age 30, and at the time of Gabriel's second marriage *fiscal* of the parish church of Tepeapulco.

All five of these acquaintances of Gabriel viewed him about 1730 as mulatto; four of them say he is a dark mulatto (*mulato prieto*); two mention that his hair falls to the side of his face but only Caytano specifically associates this with Indians. With some variations, these five think of Gabriel as short (Francisco, Nicolasa, and Jacinto say *pequeño de cuerpo*) and two of them, using the term *doblado* to imply shortness in the sense of a compact and strong physique (Caytano: *no alto de cuerpo sino doblado*; fray Juan, simply *doblado*). Jacinto García, on the other hand, describes him as slender (*delgado*), and Nicolasa María as skinny (*flaco*).

Finally, a surprising range of age attributions comes from this group: fray Juan puts Gabriel at 50; Francisco Antonio, at "about 40"; Nicolasa María, at "over 40"; and Jacinto García (the youngest witness, age 22), at "about 30." Caytano Miguel, the Indian, did not estimate Gabriel's age but notes some grayness in his beard (*pinta en cañas en la barba*) as did Nicolasa María in his hair (*ya pinta de cañas*) and seems to associate their appearance generically to her estimate of "over 40."

From Gabriel's circa 1730 cohorts, then, we might summarize him as follows. He is a somewhat "middle aged" man, graying but still evidently strong and vigorous; he is, in their eyes, clearly mulatto, even though he wears his hair in an Indian style. In addition to the onset of grayness, Gabriel has changed in personality, for not one of the five witnesses mention his happy

nature as did five of his acquaintances from Atrisco. The years, it seems, and perhaps Antonia's elopement with his brother Francisco, had settled a more sober outlook on Gabriel.

After reviewing these sometimes complementary, sometimes apparently contradictory details, we are still faced with the question: who was Gabriel Pérez? What about him was individual and what about him fits a type? How did he connect to his society?

The truth is that he cannot be pinned down in very meaningful ways with caste terminology unless given designations are linked to other aspects of his life at given moments. We can say, however, that he was a free plebeian man who adjusted his "identity" to fit his circumstances. At one point, to use the shorthand of his time, he was mostly *zambaigo*, at another, mostly dark mulatto. In either case, but in different ways, he was destined to live under the authority of others as a *gañan* or a muleteer. Both involved searching for masters to employ him and also, possibly, to patronize him, for he had no mules of his own. And in this he had some success. He changed masters and jobs several times and in Atrisco cemented a connection by marrying his master's house servant. Perhaps the trust he built up allowed him to extend his credit with advances on his wages, but if so he violated that trust at one point by running away rather than working off the debt. He took some risks, therefore, and tried to improve his chances.

Gabriel challenged the authority of his superiors only indirectly if at all. He presented a happy face (at least in his early 30s) and remained properly deferential to his superiors who would have been *hacendados, hacienda* administrators, friars, and, of course, Inquisition officials. All of these were Spaniards who for the most part held the honorific don. His other associations seem indiscriminate--a mix of Indians, mestizos, and mulattoes--whom he

associated with in the workplace and socially. One *déclassé* Spaniard, Francisco Antonio the illiterate shepherd, he approached to ask that his wife serve as *madrina* in his wedding. And, of course, all his wives and consorts were Indian women. In this, we have a vital clue to his working status: a man linked closely to the Indian world-the despised *indio* associated with stupidity, ignorance, stubbornness, and possibly paganism which was a binary opposite of the 'Spaniard'-the self-celebrated *gente de razón*, of civilized bearing, and old Christian lineage.

We are fortunate to have a vivid glimpse of Gabriel in an apparently deferential moment. It comes when he was summoned to Apán by the friar who asked him "how dared he" *(como se atrevía*) live "a married life" with a woman to whom he was not married. This was after his brother had run away with his first wife and he had taken up with an Indian woman named María de la Ascención. Gabriel responded in the guise of a penitent, but a wily one. He admitted wrongdoing and declared his intention, already given as a promise he said, to marry María. Of course he could not do this as an already married man but, knowing that the friar had no knowledge of his first marriage, he did what he had to do save himself from recrimination and perhaps a flogging. Instead, the friar initiated procedures to marry Gabriel.

Was this the clever agency of a man outwitting his superior or the cunning of a cornered rat? Well, maybe something of both. Sensibly Gabriel had avoided punishment, as a survival reflex perhaps, but also to conserve whatever well being he enjoyed. We would probably be wrong, at least in this instance, to see Gabriel's wiliness as linked to a perception of systemic injustice in his world.[27] Yet there was something of political resolve in Gabriel's decision to proceed with a bigamous marriage. That, after all, meant taking a considerable risk to do something to continue his life with María as before as well as to avoid punishment and

separation.

Thus the substance of what happened here may matter more than the style. It suggests that Gabriel used deference, the attitude expected of him, to solve an immediate problem. Some might think of this as childishly shortsighted, that he should have known that a bigamous second marriage would lead to far greater trouble with the Inquisition. But who can say how a man of a different time, place, and culture, should have weighed up present against future trouble. I am inclined to think of Gabriel as a practical man who dealt with problems as they arose. As for the future, he was something of a gambler. Used to living by his wits and from moment to moment, he would deal with the future when it arrived. In our sketchy view of him, in fact, it seems in character for him to have thought in such terms. He acted on the spur-of-the-moment in changing masters, adjusting his 'identity', running away from debt, and in taking up with women. And later, as prisoner of the Inquisition, he seized the opportunity and broke through the adobe wall of his jail.

Perhaps, then, we should view Gabriel as *externally* deferential, as part of an overall tactic for getting on in the world. Getting on, in this sense, meant living on the edge, dependent on the good will and patronage of masters, bosses, and priests but alert to the punishment and damage these same people might inflict. Those behaviors, I think, constituted an essential part of the "culture" of castas referred to by Aguirre. They provide, I think, a pretty good picture of how plebeians accommodated to as well as resisted the dominant personages and institutions of their worlds.

ENDNOTES

1. The Indian/non-Indian distinction also had a basis in jurisprudence in grouping all of the latter as *gente de razón* and therefore holding them "to full responsibility in terms of European law and religious responsibility." (Sherburne F. Cook and Woodrow Borah, Essays in Population History (3 vols; Berkeley and Los Angeles, 1971-1979), II, p. 188) This distinction was essential in the Indies, for Spaniards, to use Edward W. Said's phrase, "derive[d] a sense of their identities negatively." Edward W. Said, Orientalism (New York: Random House, 1979 [1978]), p. 54. They were *not* Jews, *not* Moors, *not*, therefore, of tainted lineage.

2. John K. Chance and William B. Taylor, "Estate and Class in a Colonial City: Oaxaca in 1792," *Comparative Studies in Society and History*, 19:3 (July 1977), 460; Fred Bronner (after Jan Szeminski), "Urban Society in Colonial Spanish America: Research Trends," 21:1 (1986), p. 31.

3. Robert McCaa, "Calidad, Clase and Marriage in Colonial Mexico: The Case of Parral, 1788-90," *Hispanic American Historical* Review 64, 3 (August 1984), p. 477. Patricia Seed's application of Charles Wagley's "concept of social race" is a comparable construct. Patricia Seed, "Social Dimensions of Race: Mexico City, 1753," *Hispanic American Historical Review* 62,4 (November 1982), p. 574.

4. Seed, "Social Dimensions," p. 573.

5. Gonzalo Aguirre Beltrán, *La población negra de México, 1519-1810: estudio etnohistórico* (Mexico City, 1946), pp. 188-189.

6. These advantages, listed as if separate, of course were not, for they were interactive. I see wealth and patronage, however, as instrumental to enhanced reputation as 'European' more than as ends in themselves. The obverse obtained as well, particularly in the forming of family alliances through marriage: enhanced respectability opened the way to more favorable marriages.

7. And for their purposes, to develop an aggregate profile of Mexico's population, no doubt a justifiable reduction. Cook and Borah, *Essays*, II, pp. 189-90.

8. "Todo parece indicar que en Europa se dabe un mayor enfasís al factor cultural, mientras que en el Nuevo Mundo era el biológico el que adquiría importancia." Aguirre, *La Población*, p. 271. Yet this statement seems to overstate Aguirre's real position, for he presents data on the same page implying that racial terminology was a shorthand for cultural characteristics such as the formulaic reference to oneself as descended of "*cristiano viejos*."

9. This, of course, is what we all do in subsuming phenomena within categories of one sort or another.

10. The 'systematic' approach has led some of the most distinguished historians of my field, with breathtaking condescension, to announce that men and women of the seventeenth and eighteenth centuries were "mistaken" in the way they used racial categories (David Brading and Celia Wu, "Population Growth and Crisis: León, 1720-1816," *Journal of Latin American Studies* 5(1973), p. 9.) or that the categories themselves were "irrational" (Marcelo Carmagnani, "Demografía y sociedad: la estructura social de los centros mineros del norte de México, 1600-1720," *Historia Mexicana* 83 (21:3 (enero-marzo 1972), pp. 426, 445.) For the late colony, Chance and Taylor (as wall as many others) argue that "socio-racial status became increasingly dependent upon economic considerations" which signaled the shift of class-based stratification (Chance and Taylor, "Estate and Class," pp. 485-486).

11. All references to Gabriel are drawn from AGN, Inquisición, vol. 832, fs. 1-55. The file does not detail systematically his genealogy and early life through his own testimony because Gabriel never gave a detailed "confession" to the Inquisitors in Mexico City.

12. Gabriel's father was dead by 1730 when he testified that he was free, that is unencumbered with another marriage, a religious vow, or other 'impediments', to marry his second wife, María de la Ascensión. Gabriel's niece, who shortly after he married María would testify (probably in January 1731) that the marriage was bigamous, did not seem to know at that point that Ramón was dead (f. 4).

13. I infer this from Gabriel's standing as legitimate (*hijo legítimo*) and his civil status as a free man.

14. Should we assume, therefore, that he was less attached to his biological family? I do not know, but if he was, he still managed to remain teamed up with his brother in taking jobs together, at least until the brother ran off with Gabriel's wife.

15. A family connection is not specified in the file, but I think it likely.

16. I doubt that age played a major part in scaling precedence here but we may note that don Juan was Gabriel's senior by twenty years as well as a Spaniard. Don Domingo, the only other Spaniard whose age is recorded, was roughly Gabriel's age.

17. Charles Gibson, *The Aztecs Under Spanish Rule: A history of the Indians of the Valley of Mexico, 1519-1810* (Stanford, Calif.: Stanford University Press, 1964), p. 247; James Lockhart, *The Nahuas After the Conquest: A Social and Cultural History of the Indians of Central Mexico, Sixteenth Through Eighteenth Centuries* (Stanford: Stanford University Press, 1992), p. 114.

18. f. 11v-12r.

19. With a surviving mother still living in Puebla and his claim to legitimate birth, this information could have been easily verified by the Inquisition (although there is no indication in the file that it was), so I presume it to be true.

20. Perhaps this should remind us that the extraction and aggregation of apparently straightforward and 'simple' entries from parish records (and other quantifiable sources) can, unless extreme care is taken, be an exercise in reifying error.

21. James Riley, in his study of Tlaxcala, sees a clearer differentiation between *gañánes* and *tlaquehuales* or *meseros* emerging in the 1680s. The first were "workers who lived on an estate and were included on its padrón"; they were "tied to the hacienda for life." James D. Riley, "Landlords, Laborers and Royal Government: The Administration of Labor in Tlaxcala, 1680-1750," in *El Trabajo y los trabajadorres en la historia de México*," compiled by Elsa Cecilia Frost, Michael C. Meyer y Josefina Zoraida Vázquez (Mexico City and Tucson, Arizona: El Colegio de México and University of Arizona Press, 1979), pp. 227, 229. The majordomo of hacienda Portesuelo, where Gabriel took work as a muleteer, seemed to distinguish between the categories *gañán* and *mesero* with less precision than Riley's definitions imply when he said that Gabriel "*se acomodó de mesero o gañán en la dicha hacienda* [Portesuelo]." Another reading, less likely I think given his position, could be that he was clear about the categories but not clear about which of them applied to Gabriel. Declaración de Manuel Benítez, 16 de mayo de 1731, fs. 13v-14v. As to Riley's characterization of gañánes as "chattle" he can mean only that resident workers went with a property when it was sold, not that owners agricultural propertied systematically "incarcerated" workers as they did in obrajes. Gibson, *The Aztecs*, p. 246-7; James Lockhart and Stuart B. Schwartz, *Early Latin America: A History of Colonial Spanish America and Brazil* (Cambridge: Cambridge University Press, 1983), p. 142.

22. Ibid., p. 230.

23. f. 12.

24. Declaración de Bartolomé Juárez, 18 de Mayo de 1731, f. 17r-v. Bartolomé's wife, Antonia Sebastiana (india, ladina, madrina of the marriage) used the same term, but straightaway without calling attention to it, in describing Gabriel. Declaración de Antonia Sebastiana, 18 de mayo de 1731, fs. 16v-18r. The logic of the characterization, to speculate a little, possibly traces to the term *gañán*, a term current among Indians by early in the seventeenth century if not before (Lockhart, *The Nahuas*, pp. 508-9, n. 95).

25. Declaración de Caytano Miguel, 14 de junio de 1731, f. 28r-v. Caytano seems to have known Gabriel only later in the district of Apán, but I am assuming that his description of Gabriel ten years after his first marriage reflects his appearance earlier as well.

26. Let me expand a little on the logic for imagining amusement. Assuming (possibly ethnocentrically), just for the sake of argument, that incongruity is the essence of humor, it is possible that the source of this particular joke comes from inverting the meaning of gañán. Just as *gañán* meant "hacienda Indian," so "*calpan mulato*" meant community mulatto. The first, a contradiction of terms in an earlier period, was no longer 'funny' because it reflected common practice and thus came into current usage; the latter remained contradictory possibly, not because mulattoes did not frequently reside in Indian communities, but because they always did so as outsiders, strangers, and antagonists.

27. I am thinking here of rare occasions when dominated peoples confronted their superiors with outbursts of criticism, the "hidden transcripts" they would normally voice only among themselves. James C. Scott, *Domination and the Arts of Resistance: Hidden Transcripts* (New Haven and London: Yale University Press, 1990). Scott is wrong, in my view, to discard so wholeheartedly the notion of hegemony, for it is evident that people did to a degree internalize norms and assumptions that contributed to and perpetuated their own subordination.